

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, AUGUST 18, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**CAPTIAL ONE N.A. vs. YOLANDA GARCIA
Case No. CL24-09119**

Motion by Plaintiff to Vacate Dismissal and Enter Judgment Under Terms of the Stipulated Settlement Against Defendant

TENTATIVE RULING

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)].

Defendant filed no responsive pleading in this action.

The only proof of service filed here for the motion papers shows service by mail, on Defendant, at an address at which personal service of summons and complaint had been completed over a year earlier. No evidence was provided to explain how this could constitute proper service on a defendant who has never appeared in this action.

Plaintiff's motion is denied without prejudice. Should Plaintiff seek to refile their motion, Plaintiff is directed to effect service of the motion papers in the same manner as required for service of a summons and complaint.

Plaintiff is also reminded that costs must be claimed post-judgment, per CRC 3.1700.
